Harris County District Court

Cause No. 2024-CV-0023

Warren Fletcher, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	9-3-24
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

Subject to and without waiving the foregoing general denial, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence caused or contributed to the collision. Plaintiff failed to keep a proper lookout, failed to yield the right-of-way, and failed to exercise ordinary care under the circumstances, and any recovery must be reduced in proportion to Plaintiff's percentage of responsibility under Chapter 33 of the Texas Civil Practice and Remedies Code.

Second, the collision was proximately caused by the acts or omissions of a third party over whom Defendant had no control, and that third party's conduct constitutes a new and independent cause of Plaintiff's alleged injuries.

Third, Plaintiff failed to mitigate damages by not following reasonable medical advice and by incurring medical expenses that were unnecessary or unreasonable in amount, and any recovery must be limited accordingly.

Defendant reserves the right to amend this answer as discovery proceeds.